

THE CORE FINDINGS — POINT FORM

THE FOUNDATIONAL LEGAL TRAP

- The government's entire ADAP justification rests on a distinction between people who "completely cannot work" (AISH) and people who "can work with supports" (ADAP)
 - That distinction does not exist in the AISH Act
 - The actual legal standard for AISH eligibility is "**substantial limitation**" in ability to earn a livelihood — not complete prevention
 - This is in the government's own AISH Policy Manual, AISH Act, and AISH General Regulation
 - The government invented the distinction to justify the transition — it has no legislative basis
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THE EMPLOYMENT OBLIGATION TRAP

- The AISH Policy Manual already requires clients to seek and accept reasonable employment, retain work they can hold, and use available training
 - The employment framework ADAP claims to be introducing already existed inside AISH
 - What ADAP actually adds: \$200/month cut, lower income exemption, no inflation indexing, no appeal rights
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THE DATA TRAP

- 83.9% of AISH recipients have zero employment income — from the government's own open data
 - The government says ADAP is for people who can work
 - Their own data shows 83.9% of the people being moved to it cannot sustain employment income
 - Those two positions cannot both be true
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THE EARNINGS EXEMPTION TRAP

- Government presents \$700/month exemption as an improvement
- Current exemption is \$1,072/month
- That makes ADAP a cut of \$372/month for anyone who works

- University of Calgary economist analyzed the government's own Case Study 1 — the example they used to prove ADAP is better — and found it leaves recipients \$164/month worse off than today
 - The government's own example is wrong
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THE APPEAL RIGHTS TRAP

- The government's own open data shows the Citizens Appeal Panel overturned or changed 37% of all AISH decisions reviewed
 - 1,218 decisions found to be wrong across four fiscal years, 19 consecutive quarters
 - Bill 12 eliminated that panel for the most important decision in the new system — which program you're placed on
 - The government didn't fix the error rate. It removed the mechanism catching the errors.
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THE FISCAL NECESSITY TRAP

- Four consecutive budget surpluses totalling over \$26 billion
 - \$5.6 billion deposited into the Heritage Fund in the same period as the cuts
 - Heritage Fund grew \$383 million in a single quarter — five times more than the total three-year AISH cut
 - Reversing every major cut costs approximately \$260 million per year
 - Heritage Fund earned approximately \$2.6 billion last year
 - Full reversal = 10% of one year's investment returns
 - The Heritage Savings Trust Fund Act, 1976 states a founding objective as "to improve the quality of life of Albertans" — still operative law
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THE PRIOR FINDING TRAP

- Every AISH recipient was formally assessed and approved by the government's own adjudication process
 - The formal finding: permanent disability substantially preventing employment
 - No new medical evidence has emerged
 - No accuracy review was conducted
 - The government has not explained what changed
 - In administrative law, the burden to reverse a formal finding lies with the party seeking reversal — not the person the finding protects
 - The government reversed this: recipients must re-prove what was already proven, with no explanation and no appeal
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THE CPP-D DOUBLE FINDING

- 16,161 AISH recipients — one in five — also hold CPP Disability income
 - That means two independent government processes — one provincial, one federal — both formally found these people permanently unable to work
 - Both findings are being overridden by the same transition
 - No new evidence. No explanation.
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THE CDB FORCED LOOP

- AISH policy legally requires recipients to apply for the Canada Disability Benefit
 - Alberta then claws it back dollar-for-dollar
 - Net benefit to recipient: \$0
 - Alberta is the only province in Canada to do this — every other province exempts the CDB entirely
 - The federal government spent ~\$190 million per year to reduce disability poverty in Alberta
 - Alberta captured it all and returned nothing to recipients
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THE NIXON LETTER ADMISSION

- Minister Nixon's letter, April 3, 2026, states recipients can reapply for AISH "if their medical condition progresses to the point that they are unable to work"
 - Those words were written about people already formally found unable to work
 - The government is telling people with permanent disabilities they must get worse before it will recognize what it already documented
 - Preserved in the evidentiary record without response
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THE BOTTOM LINE FOR THE MEETING

The government built a program transition on a legal distinction that doesn't exist in their own law, using data their own open records contradict, removing the appeal mechanism their own five-year data shows was necessary, while simultaneously growing a savings fund whose founding legislation requires them to improve the quality of life of the people whose income they are cutting.

Every one of those points is sourced from the government's own documents.

That's everything he needs, in the order that builds the argument. Good luck Friday.